

26SMCV02267 26SMCV02267

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a medical malpractice case, but it also involves alleged battery. Plaintiff sues the surgeon who performed the procedure and also the hospitalist, who demurs. Plaintiff opposes the demurrer.

As to the cause of action for battery, the demurrer is SUSTAINED WITH LEAVE, although the court doubts that any amendment will work. The demurring defendant is the hospitalist. This defendant had nothing to do with the surgery; this defendant came into the picture after the surgery was over. The court just does not understand the battery issue. Indeed, plaintiff comes about as close as possible to conceding the issue without actually admitting that the demurrer is insurmountable in this regard.

There is also a claim for fraud. The theory is that the hospitalist was aware of the problem, part of which was that the surgery was allegedly elective surgery but the chart was changed to suggest that it was emergency surgery. The argument is that the hospitalist was aware of the false chart but initially said nothing to plaintiff, although plaintiff does agree that it was the hospitalist who later disclosed the alleged impropriety. The problem here is that the court does not understand reliance. In other words, there was at least allegedly a period of time where the hospitalist purportedly knew of the false entry but did not disclose it. But so what? For plaintiff to sue under this theory, plaintiff needs to establish that because the hospitalist did not disclose the entry sooner, plaintiff, in reliance, took some action or refrained from taking some action to plaintiff's detriment. There is nothing like that alleged here. The

actual injury itself was not hidden, and there is no allegation that due to the hospitalist's statements (or lack thereof) any treatment changed. Accordingly, the demurrer as to this issue is also SUSTAINED WITH LEAVE TO AMEND.

Thus, the demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

As to the motion to strike, the court agrees with the defense that the allegations of willfulness should be stricken (without prejudice to a motion at a later date to add a request for punitive damages upon a proper showing. Thus, that aspect of the motion to strike is GRANTED. The reservation of the right to amend is also stricken. There is no right to amend; there is a right to bring a motion for leave to amend. The motion to strike is therefore GRANTED.